JULIUS TAWONA MAKONI
versus
PAULINE MUTSA MAKONI
and
REGISTRAR OF DEEDS N.O
and
THE SHERIFF OF THE HIGH COURT

HIGH COURT OF ZIMBABWE
TAKUVA J
HARARE; 19 June 2025 & 13 January 2026

Court Application

W Ncube, for Applicant
T Mpofu, for 1st Respondent
No appearance for 3rd and 4th Respondents

TAKUVA J: This is a court application in terms of Section 8 of the Deeds Registries Act [*Chapter 20:05*] and Rule 59 of the High Court Rules, 2021.

FACTUAL BACKGROUND

The applicant and the first respondent in this matter were husband and wife, whose marriage was solemnised in Harare on 31 December 1983. Their marriage was terminated by a decree of divorce issued by the High Court of England. The English court in the United Kingdom issued a final decree for the dissolution of the marriage and for the transfer of all immovable matrimonial assets in England and Zimbabwe to the applicant. A dispute between the parties arose over the distribution of immovable properties in Zimbabwe. Following the divorce decree in the United Kingdom that ended the marriage between the applicant and the first respondent, the former petitioned this Honourable court for an order to be awarded, as a consequence of the end of the marriage, the property registered in applicant's name known as no. 5 Rietfontein Close, Chisipite, Harare being the remainder of subdivision A Lot 6 of Rietfontein situated in the District of Salisbury measuring 1.2129 hectares. After her petition was dismissed by this court, the first Respondent then appealed to the Supreme Court, and her appeal was upheld under case number SC 236/23. In *an ex-tempore* judgment, the

Supreme Court ordered inter alia the transfer of the said property to the first respondent and signing all transfer papers within seven days, failing which the order authorised the Sheriff to sign the transfer papers.

Aggrieved by the *ex-tempore* judgment of the Supreme Court, the applicant requested the written reasons of the judgment from the court to enable him to approach the Constitutional Court on appeal. In response, the Supreme Court stated that the written reasons would be furnished in due course. However, the Applicant has not received the written reasons.

While waiting for the Supreme Court's written reasons of the judgment aforesaid, the applicant unsuccessfully made an application to this court for a stay of execution under case number HCH7216/23. The applicant then appealed against that decision under case number SC80/24.

When case number SC80/24 was about to be set down for hearing, the applicant lodged a complaint to the Supreme Court's Registrar. The applicant complained about what he perceived to be unfair treatment by the courts, taking into account the fact that he waited for a long time for the written reasons of the judgment under SC236/23 to assert his rights at the Constitutional Court, yet case SC80/24 was about to be heard, which had been filed much later.

Despite the Respondent's opposition of Applicant's requests to the Supreme Court to have the hearing of SC80/24 suspended pending the court's handing down of the written reasons for the *ex-tempore* judgment under SC236/23, the court agreed to the Applicant's request to put the matter under SC80/24 on hold. If the determination of the Supreme Court under case SC80/24 comes out in first respondent's favour, it would enable her to cause the transfer of the property in dispute to her. Thus, before the determination of SC80/24, the first Respondent will not legally execute the *ex-tempore* judgment under SC236/23.

THE APPLICANT'S CASE

The applicant in this matter is Julius Tawona Makoni, a male adult. The Applicant alleges that he needed the written reasons of the judgment under SC236/23 to not only argue SC80/24, but it was more importantly to enable him to approach the Constitutional Court to save his property which had been awarded to the first Respondent through an unspeaking order that violated his constitutional rights.

The Applicant only recently learnt through the summons issued under HCH4304/24 that the first Respondent had caused the transfer of the property in dispute into her name held under Deed of Transfer no 4389/24. Through the said summons, the first Respondent is seeking damages and Applicant's eviction from the property.

The Applicant argues that it is fraudulent and contemptuous of the court for the first Respondent to cause the transfer of Applicant's property into her name before the Supreme Court hears and decides on SC80/24. The Applicant further argues that it is an abuse of justice for him to lose his property valued at over USD 800 000.00 based on an unspeaking order of the Supreme Court. Moreso, the Nicodemus transfer of the Applicant's property also cuts across the clear meaning and intent of the Supreme Court letter which suspended all activity around this dispute until the determination of SC80/24 and the handing down of the reasons for the judgment under 236/23. Therefore, the Applicant is challenging the way in which the first Respondent transferred the property in question to herself. The Applicant's submission is that whilst allegedly executing the said Supreme court order, the first Respondent illegally caused the transfer of the property in issue, in violation of Section 38 of the Deeds Registry Act. (See para 22 -28)

Moreso, the Applicant alleges that when the first Respondent's lawyers wrote to him after the order under SC236/23, requesting him to facilitate the transfer of the property in issue to the first Respondent, the Applicant realised that he had misplaced a copy of the property's title deed. As a result, the Applicant instructed his lawyers to approach the second Respondent for a copy to enable him to lodge an application for a lost deed and was informed that the office copy could also not be found on file. The Applicant was advised by his lawyers that he needed to lodge a Section 38 of the Deeds Registry Act application, which Applicant is yet to do.

The Applicant was advised that under our law, ownership of an immovable property can only be established through a valid registration of transfer. Thus, the Applicant asserts that without an office copy of the title deed, the purported transfer to the first Respondent was invalid because it by passed a mandatory provision of the law, Deeds Registries Act, particularly section 38. The Applicant claims that he's the lawful owner of the land and the improvements that were held under Deeds of Transfer no.4388/95 before they were allegedly transferred by the second Respondent with the most likely facilitation of the third Respondent contrary to the law against the first Respondent under DT no.4389/24.

The Applicant challenges the second and third Respondents that they should not hide behind the usual excuse that they are colorless in petitions of this nature. Instead, they should be transparent with the court and explain how first respondent was able to transfer the property in issue in the absence of an office copy of the property's title deed.

The applicant submits that third Respondent should confirm to the court whether or not he acted based on a court order to do the needful in terms of Section 38, assuming that the first Respondent or her lawyers convinced the court that the Applicant was not cooperating with the facilitation of the transfer in issue. Therefore, the Applicant prays for an order cancelling first respondent's title held under DT no.4389/24 and the revival of his title held under DT no.4388/95.

first RESPONDENT'S CASE

The first Respondent in this matter is Pauline Makoni, a female adult and is the ex-wife to the Applicant. The first Respondent is opposed to the application for cancellation of a deed of title. The first Respondents submits that the title sought to be cancelled was taken in execution of a final and definitive judgment of the Supreme Court. The Supreme Court order required the applicant to sign transfer papers within 7 days failure to do so, the Sheriff would in his capacity as officer of the court, sign those papers in execution of its judgment. The first Respondent states that the Applicant did not sign the papers and did not explain why he did not want to do so. The first Respondent was not informed by Applicant that he lost his original deed of title and that the copy in the Registrar of Deed's office had disappeared. Instead the Applicant made an application in the High Court seeking to stay the Supreme Court judgment, which required Applicant to transfer the property and did not explain why he sought to stay an order which according to him could not be executed.

Furthermore, the first Respondent asserts that since there was no impediment to the transfer and had a copy of the deed of title lawfully issued for judicial purposes, first Respondent then approached the Sheriff who transferred the property to her. The first Respondent submission is that there's no law which says a deed issued for judicial purposes cannot be used for purposes of effecting transfer. The first Respondent argues that Applicant falsely made claims that the High Court judgment of declining him a stay was suspended by the appeal he noted against it and that transfer could not be taken as a result. Moreso, first Respondent argues that the basis upon which Applicant has approached the court has nothing

to do with Section 8 of the Deeds Registries Act. The basis upon which the court was approached is that tittle could not be taken as long as applicant had not applied for a replacement deed and as long as his appeal against a judgment refusing him stay was still pending. Thus, this is clearly is a false and improper basis upon which to seek the cancellation of tittle.

Moreso, the first Respondent argues that it is incorrect that the property was transferred unlawfully. There's a validly issued deed which was used in the transfer process. Respondent argues that there's no law which provides that a deed issued for judicial purposes cannot be used for purposes of effecting transfer. The respondent submits that because there was a copy of title deed that had been issued in terms of Section 20 of the Deeds and Registries Regulations, 1977, Applicant cannot rely on Section 38 of the Deeds Registries Act.

Additionally, the first Respondent submits that the application before the court is an abuse of court process. It is important to note that judgments of the Supreme Court are binding and any question of their correctness cannot arise in this Court or even in the Supreme Court. first Respondent argues that the transfer of title was done in execution of an extant Supreme Court order thus, the transfer stands as a valid act. The first Respondent prayed that this application in terms of section 8 of the Deeds Registries Act be dismissed with costs on legal practitioner and client scale.

POINTS *IN LIMINE*

1.NO LEGAL INTEREST

The first Respondent argues that the Applicant has no legal interest to question the validity of the process of transfer when his status has already been settled by the court order, which says he must relinquish title of which he is obliged to comply with. The fact of the matter is that the Applicant seeks to create for himself an advantage to the prejudice of the first Respondent. Therefore, the first Respondents submits that the court cannot allow Applicant to choose the time or manner he wants to comply with a judgment of the Supreme Court and he has no basis to seek relief before this court. Additionally, Applicant's lack of interest arises when one considers the effect of execution by Sheriff. The first Respondent submits that the effect was done so as to put the property in the Sheriff's hands until transfer. This was achieved by the creation of a *pignus judiciale* by operation of law, and the effect is

to divest the former owner of all its rights in the property and to invest real rights in the judgment creditor - see *The Sheriff & Anor* v *Willdale Limited* 2017 (1) ZLR 832 @ 837, the court said that:

> "In *casu*, the judgment creditor obtained a real right over the property when it was attached by the Sheriff."

In *casu*, the effect of transfer of property in issue by the Sheriff, is that it gave first respondent real rights over the property and that the Applicant lost the rights of ownership which he seeks to enforce. l am persuaded to agree with first Respondent's Submission that the Supreme Court order settled the position of the Applicant and any rectification of the process cannot change that fact. Therefore, the court finds that the issues that the Applicant raises are an abuse of court process and now moot. The point *in limine* raised is accordingly upheld.

2. NO CAUSE OF ACTION

The first Respondent argues that the first point to note is that the application stands or falls on its founding affidavit. Reliance was placed on the case of *Mangwiza* v *Ziumbe* NO & Anor 2000 (2) ZLR 489(S) at 492D-F. It was also argued that Section 8 of Deeds Registries Act does not grant any substantive impact. The first Respondent's submission is that the basis upon which the Applicant approached the court has nothing to do with Section 8 of the Act. The Applicant's application focuses on the fact that the title could not be taken as long as applicant had not applied for a replacement deed and as long as his appeal against a judgment refusing him stay of execution was still pending. Therefore, his argument is that Applicant's incompetent case ought to be dismissed.

In response the Applicant, argued that section 8 of the Act provides for anyone who believes a deed was issued irregularly can approach the court seeking for cancellation. The Applicant stated the grounds on which the application was made in terms of Section 8 of the Act, that is a transfer requires that original title deed to the property be lodged, if not available a certified copy must be lodged or a certified copy registered title. However, in this matter the Respondent used a copy which had been obtained for judicial purposes. The Supreme court judgment did not authorize an unlawful transfer. The Applicant contends that the first Respondent should have applied for a current certified copy of the original tittle deed

from third Respondent. Section 20 of Deeds Registries Regulations provides for the use of a certified copy of the deed in place of the original.

Section 38 of the Deeds Registry Act provides that:

> "If the title deed of any land has been lost or destroyed and the registry duplicate of such title deed has also been lost, the registrar shall, on written application by the owner of the land, accompanied by a diagram of the land, if no diagram thereof is filed in the registry or in the office of the Surveyor-General, execute a certificate of registered title in respect of such land in accordance with the diagram of the land."

Thus, because the Applicant claims that he lost the original title deed he ought to have made an application in terms of Section 38.

LAW AND LEGAL ANAYSIS

It in the case of *Zimbabwe Posts (Pvt) Ltd* v *Communication & Allied Services Union* SC 20/16 GOWORA JA aptly stated that:

> "The issue that begs an answer is how the court *a quo* should have dealt with the matter given the apparent confusion that had been created by the appellant in filing its papers. An Application must be disposed of on the basis of the founding affidavit…."

In *casu*, it is averred in Applicant's founding affidavit that the application is brought in terms of S8 of the Deeds Registries Act and Rules 59 of the High Court Rules, 2021. However, the basis upon which the Court was approached is that title could not be effected as long as applicant had not applied for a replacement deed and as long as Applicant's appeal against a judgment refusing him stay of execution was still pending.

2. ESTOPPEL

The first Respondent contends that the questions which have been raised by this application have become issue estoppel. The issue of whether the execution must take place has been placed before KATIYO J, who gave a judgment that has not been set aside and remains extant. In *casu*, the Applicant sought to raise the same issue. The first respondent argues that in such instances the court must consider the substance and not the form, and in this case the substance is that applicant does not want the transfer to pass to the respondent. Whilst the Supreme Court order on transfer has now been enforced, the issue raised is clearly issue estoppel. The applicant made an application for stay a of execution and the application was dismissed. The first Respondent alleges that the applicant failed to explain why he sought to stay an order which according to him could not be executed. In response, the

Applicant argued that the issue of estoppel cannot be invoked to allow an unlawful act thus, estoppel cannot be raised to protect an illegality.

LAW AND LEGAL ANALYSIS

In *Willowvale Mazda Motor Industries (Pvt) Ltd* v *Sunshine Rent-A-Car (Pvt) Ltd* 1996 (1) ZLR 415 (SC), dealt with the principle of issue estoppel. It held the following:

> "While the doctrine of issue estoppel May not be part of Roman-Dutch law and may not as yet have a berth in South African law, it seems to me that this court, in wider application of existing law in the light of current modes of thought has found the artificiality of limiting estoppel to the same subject to be unproductive of justice and has embraced the doctrine of estoppel under the general rule of public policy that there should be finality in litigation."

In *Mills* v *Cooper [1967] 2 QB 459 at 469*, Lord Diplock stated the following:

> "Whatever may be said of the other rules of law to which the label of estoppel is attached, issue estoppel is not a rule of evidence. True subject to the qualification l have stated, it has the effect of preventing the party estopped from calling evidence to show that the assertion which is the subject of the issue estoppel is incorrect, but that is because the evidence of the issue estoppel results in there being no issue in the subsequent civil proceedings to which such evidence would be relevant. Issue of estoppel is a particular application of the general rule of public policy that there should be finality in litigation."

Therefore, the court determines that the preliminary point on estoppel be upheld.

MERITS OF THE CASE

The first Respondent argued that the property in issue was lawfully transferred in terms of the extant Supreme Court order. There is a validly issued deed which was used in executing the transfer of property. The first Respondent argued that there's no law which provides that a deed issued for judicial purposes cannot be used for purposes of effecting transfer and after all it is a deed. He further, submits that the life of the deed which is 18 years old does not change the position. Therefore, Section 38 of the Deeds Registries Act is not applicable because there was already a copy issued in terms of Section 20 of the Deeds Registries Regulations, 1977.

The first respondent submits that the applicant's case is not legally supported and for that reason it must be dismissed. Applicant cannot make a case based on legality when he's not referring to any legal standard that has been directly contravened. The first respondent relies on the case of *Mukoko* v *The Attorney-General SC-11-12*, which provides that the principle of legality requires for its engagement that the breach of a direct provision of the law be implicated.

The Applicant alleges that he lost the title deed, however, the Applicant has failed to provide proof that the duplicate copy of the deed is either lost or destroyed.

The Applicant seeks to set aside the transfer and revive his title to the property on the basis that the transfer was executed illegally using a 2011 copy of the title deed which was obtained for different judicial purposes and in the absence of the original title deed as well as the duplicate of the original copy at the Registrar's offices. The applicant submits that the transfer of property was effected in violation of the provisions of the Deeds Registries Act, which requires that where there's a transfer of an immovable property, the holding deed must be lodged and if the holding deed is not available or lost, an application for a certified copy of it must be made and granted. In casu, the Applicant alleges that the transfer was purportedly made without the holding deed being lodged and without an application for a certified copy having been made. Therefore, the execution of the court order ought to be effected in terms of the law.

To add on, the Applicant argued that the first Respondent's use of the 2011 copy is a tacit admission and confirmation of the applicant's averment that the duplicate original copy of the deed is missing from the third respondent's office. The bottom line is that the Registrar of Deeds has allowed the registration of title to go through and he has not opposed this application.

LAW AND LEGAL ANALSYSIS

Section 5(1) (b) of the Deeds Registries Act, enjoins third Respondent to examine all deeds or other documents submitted to him for execution or registration, and after examination reject any such deed or other document the execution or registration of which is not permitted by this Act or by any other law, or the execution or registration of which any other valid objection exist.

In my view, the third Respondent had a duty to examine all the documents submitted to him for transfer and compare an original title deed or a current certified copy of the original duplicate copy of the title deed with the original duplicate copy he keeps on file at his offices.

However, it is pertinent to note that the applicant has yet to make an application for the lost title deed. The copy used by the first respondent to effect transfer was legally obtained. Thus, the court finds that the transfer of property is not in violation of the law and the Supreme Court order is extant and effective.

DISPOSITION

In my view, a copy issued for judicial purposes can be used if certified by the officer executing the transfer. It is important to note that this application has been overtaken by events, the property in question has already been transferred to the first respondent as ordered by the Supreme Court judgment. To add on, the conduct of the second and third respondents in registering the transfer is found to be in compliance with the Deeds Registries Act. Therefore, the transfer of property was lawfully carried out pursuant to and in execution of a valid and extant Supreme Court order.

IT IS HEREBY ORDERED THAT:

The application that was made in terms of section 8 of the Deeds Registries Act be and is hereby dismissed with costs.

TAKUVA J:.....

Thomposn Stevenson & Associates, Applicant's Legal Practitioners
L T Muringani Law Practice, 1st Respondent's Legal Practitioners